

(1) Whenever the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may do any of the following:

(A) Impose a penalty of no greater than one thousand dollars (\$1,000) upon an offending attorney or party.

(B) Direct that an offending attorney pay an amount no greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund.

(C) Grant other relief as is appropriate.

(2) However, where the court grants relief from a default or default judgment pursuant to this section based upon the affidavit of the defaulting party's attorney attesting to the attorney's mistake, inadvertence, surprise, or neglect, the relief shall not be made conditional upon the attorney's payment of compensatory legal fees or costs or monetary penalties imposed by the court or upon compliance with other sanctions ordered by the court.

CCP § 473(c).

Defense counsel may submit an affidavit detailing the attorney fees and costs incurred for any work done on the matter after May 11, 2026. The Court intends to order that Plaintiff's counsel pay all reasonable legal fees and costs incurred due to Plaintiff's counsel's neglect in this matter. Because this is not a default or default judgment, CCP § 473(c)(2) does not apply. Given the history of monetary sanctions in this matter that have not been paid by Plaintiffs and the long history of noncompliance, the Court will set the reasonable legal fees and costs and require payment by Mr. Berg (not Plaintiffs) prior setting aside the judgment and resetting the Motion to Terminate. Per the request made in the Opposition, the Court will also require that monetary sanctions previously imposed but not paid be paid prior to relief being granted.

Once the above conditions have been satisfied, hearing on the Motion to Terminate Case will be set and the Court will set a briefing schedule for an Opposition and Reply. When the hearing is set, the Court will allow Plaintiffs to file an Opposition and Defendant to file a Reply. The Court will then hear the Motion to Terminate Case on the merits.

The Motion for Relief from Order and to Set Aside Judgment of Dismissal Pursuant to CCP § 473(b) is **GRANTED**. Relief is conditioned on compensation to Defendant for legal fees and costs reasonably incurred in an amount to be determined by the Court and payment of unpaid monetary sanctions previously imposed. Plaintiffs did not submit a proposed Order as required by Local Rule of Court 5.17(D). Plaintiffs are ordered to submit an order consistent with the Court's ruling.

An appearance by both counsel is necessary in order to determine when Defendant will be able to submit an affidavit regarding legal fees and costs incurred after May 11, 2026. Once that sum has been determined and paid by Mr. Berg, and previously imposed sanctions have been paid, the Court will set aside the Judgment and set the Motion to Terminate Case for hearing. The Court intends on setting a status date in approximately 45-60 days regarding status of payment and to calendar the new motion date.

MOORE VS. ROCKET MORTGAGE, LLC, ET AL.

CASE NUMBER: 26CV-0210396

Tentative Ruling on Order to Show Cause Re: Preliminary Injunction: On August 28, 2026, the Court granted Plaintiff Donna Moore's request for a Temporary Restraining Order preventing a foreclosure sale from occurring on August 31, 2026. The Court set the Order to Show Cause Re: Preliminary Injunction within the required 22 days. Defendant Rocket Mortgage opposed the ex parte request for a TRO and now opposes the Preliminary Injunction. Despite being properly noticed, Defendant Clear Recon Corp. did not file an Opposition.

The Court notes that Donna Moore did not bring this suit in her individual capacity, but as the successor in interest to Phillip M. Crippen.

In considering whether to issue a preliminary injunction, a court evaluates two interrelated factors: the likelihood plaintiff will prevail on the merits at trial and the interim harm to plaintiff or defendant if the court denies or grants the preliminary injunction. *Continental Baking Co. v. Katz* (1968) 68 Cal. 2d 512, 528. These two factors operate on a sliding scale: "[T]he more likely it is that [the party seeking the injunction] will ultimately prevail, the less severe must be the harm that they allege will occur if the injunction does not issue." *Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc.*, (2016) 6 Cal.App.5th 1178, 183. Plaintiff carries the burden of proof and persuasion on these issues. *O'Connell v. Superior Court* (2006) 141 Cal. App. 4th 1452, 1481.

"The granting or denial of a preliminary injunction does not amount to an adjudication of the ultimate rights in controversy. It merely determines that the court, balancing the respective equities of the parties, concludes that, pending a trial on the merits, the defendant should or that he should not be restrained from exercising the right claimed by him." The general purpose of such an injunction is the preservation of the status quo until a final determination of the merits of the action. Thus, the court examines all of the material before it in order to consider "whether a greater injury will result to the defendant from granting the injunction than to the plaintiff from refusing it; . . ." In making that determination the court will consider the probability of the plaintiff's ultimately prevailing in the case and, it has been said, will deny a preliminary injunction unless there is a reasonable probability that plaintiff will be successful in the assertion of his rights. As was said in *Family Record Plan, Inc. v. Mitchell* (1959) 172 Cal.App.2d 235, 242 [342 P.2d 10], "In the last analysis the trial court must determine which party is the more likely to be injured by the exercise of its discretion [citation] and it must then be exercised in favor of that party [citation]."

Continental Baking Co. v. Katz (1968) 68 Cal. 2d 512, 528, internal citations omitted.

Here, Plaintiff has two claims that remain in the Complaint after remand from Federal Court. The Second Cause of Action alleges a violation of Civ. Code § 2923.5 and the Third Cause of Action alleges violation of Bus. & Prof. Code § 17200.

(a) (1) A mortgage servicer, mortgagee, trustee, beneficiary, or authorized agent shall not record a notice of default pursuant to Section 2924 until both of the following:

(A) Either 30 days after initial contact is made as required by paragraph (2) or 30 days after satisfying the due diligence requirements as described in subdivision (e).

(B) The mortgage servicer complies with paragraph (1) of subdivision (a) of Section 2924.18, if the borrower has provided a complete application as defined in subdivision (d) of Section 2924.18.

(2) (A) A mortgage servicer shall contact the borrower in person or by telephone in order to assess the borrower's financial situation and explore options for the borrower to avoid foreclosure. During the initial contact, the mortgage servicer shall advise the borrower that the borrower has the right to request a subsequent meeting and, if requested, the mortgage servicer shall schedule the meeting to occur within 14 days. The assessment of the borrower's financial situation and discussion of options may occur during the first contact, or at the subsequent meeting scheduled for that purpose. In either case, the borrower shall be provided the toll-free telephone number made available by the United States Department of Housing and Urban Development (HUD) to find a HUD-certified housing counseling agency. Any meeting may occur telephonically.

(B) The mortgage servicer shall notify the borrower during the initial contact required pursuant to subparagraph (A) that a third party, such as a family member, HUD-certified housing counselor,

or attorney, may record a request to receive copies of any notice of default and notice of sale pursuant to the process described in Section 2924b and that receiving a copy of these documents may allow the third party to assist the borrower in avoiding foreclosure.

(b) A notice of default recorded pursuant to Section 2924 shall include a declaration that the mortgage servicer has contacted the borrower, has tried with due diligence to contact the borrower as required by this section, or that no contact was required because the individual did not meet the definition of “borrower” pursuant to subdivision (c) of Section 2920.5.

(c) A mortgage servicer’s loss mitigation personnel may participate by telephone during any contact required by this section.

(d) A borrower may designate, with consent given in writing, a HUD-certified housing counseling agency, attorney, or other advisor to discuss with the mortgage servicer, on the borrower’s behalf, the borrower’s financial situation and options for the borrower to avoid foreclosure. That contact made at the direction of the borrower shall satisfy the contact requirements of paragraph (2) of subdivision (a). Any loan modification or workout plan offered at the meeting by the mortgage servicer is subject to approval by the borrower.

(e) A notice of default may be recorded pursuant to Section 2924 when a mortgage servicer has not contacted a borrower as required by paragraph (2) of subdivision (a) provided that the failure to contact the borrower occurred despite the due diligence of the mortgage servicer. For purposes of this section, “due diligence” shall require and mean all of the following:

(1) (A) A mortgage servicer shall first attempt to contact a borrower by sending a first-class letter that includes the toll-free telephone number made available by HUD to find a HUD-certified housing counseling agency.

(B) The mortgage servicer shall notify the borrower in the first-class letter described in subparagraph (A) that a third party, such as a family member, HUD-certified housing counselor, or attorney, may record a request to receive copies of any notice of default and notice of sale pursuant to the process described in Section 2924b and that receiving a copy of these documents may allow the third party to assist the borrower in avoiding foreclosure.

(2) (A) After the letter has been sent, the mortgage servicer shall attempt to contact the borrower by telephone at least three times at different hours and on different days. Telephone calls shall be made to the primary telephone number on file.

(B) A mortgage servicer may attempt to contact a borrower using an automated system to dial borrowers, provided that, if the telephone call is answered, the call is connected to a live representative of the mortgage servicer.

(C) A mortgage servicer satisfies the telephone contact requirements of this paragraph:

(i) If it determines, after attempting contact pursuant to this paragraph, that the borrower’s primary telephone number and secondary telephone number or numbers on file, if any, have been disconnected.

(ii) If the borrower or the borrower’s authorized agent notifies the mortgage servicer in writing to cease further communication with the borrower. The cease communication notification shall explicitly pertain to the mortgage loan account to be effective. The cease communication notification shall be effective until the borrower or the borrower’s authorized agent rescinds it in writing.

(3) If the borrower does not respond within two weeks after the telephone call requirements of paragraph (2) have been satisfied, the mortgage servicer shall then send a certified letter, with return receipt requested.

(4) The mortgage servicer shall provide a means for the borrower to contact it in a timely manner,

including a toll-free telephone number that will provide access to a live representative during business hours.

(5) The mortgage servicer has posted a prominent link on the home page of its internet website, if any, to the following information:

(A) Options that may be available to borrowers who are unable to afford their mortgage payments and who wish to avoid foreclosure, and instructions to borrowers advising them on steps to take to explore those options.

(B) A list of financial documents borrowers should collect and be prepared to present to the mortgage servicer when discussing options for avoiding foreclosure.

(C) A toll-free telephone number for borrowers who wish to discuss options for avoiding foreclosure with their mortgage servicer.

(D) The toll-free telephone number made available by HUD to find a HUD-certified housing counseling agency.

(f) This section shall apply only to mortgages or deeds of trust described in Section 2924.15.

(g) This section shall apply only to entities described in subdivision (b) of Section 2924.18.

Civ. Code § 2923.5.

Defendant Rocket Mortgage argues that Plaintiff has not provided evidence that Rocket Mortgage is an entity covered by Civ. Code § 2924.18(b), therefore, Plaintiff has not shown that Civ. Code § 2923.5 applies to Defendant Rocket Mortgage. This is true, however, if Civ. Code § 2923.5 does not apply, Civ. Code § 2923.55 would apply. The language in Civ. Code § 2923.55(b)(2)(A) mirrors the language in Civ. Code § 2923.5(a)(2)(A). Both require the mortgage servicer to contact the borrower in person or by telephone to assess the borrower's financial situation prior to recording a Notice of Default. Additionally, Civ. Code § 2923.55(f) mirrors the language in Civ. Code § 2923.5(e). Under either statute, if contact is not made, a mortgage servicer shall attempt contact by sending a first-class letter, attempting phone contact, then sending a certified letter with return receipt requested if contact is not made. The Court notes that the specific information necessary to determine whether Civ. Code § 2924.18(b) applies is information that Rocket Mortgage would have access to, but Plaintiff would likely need to obtain such information through discovery. Because the requirements are the same under either statute, and because the information may not be readily available, the Court will proceed without evidence of which specific statute applies. The result is the same regardless of whether Civ. Code § 2924.18(b) applies.

Defendant argues that Plaintiff delayed in seeking emergency relief. The Court finds that Plaintiff acted diligently by filing the Ex Parte Application just sixteen days after the Order was issued in Federal Court to remand the action to State Court.

Plaintiff has provided evidence that her husband entered into a first position mortgage with Rocket Mortgage (formerly Quicken Loans) on August 17, 2017. Plaintiff's husband died on July 27, 2019 and Plaintiff, who at all relevant times lived in the home, continued making payments on the mortgage. In or around May 2024, Plaintiff suffered financial hardship and she fell behind on loan payments. On or around Dember 15, 2025 Defendant Clear Recon Corp recorded a NOD on behalf of Rocket Mortgage. The Civ. Code § 2923.55(f) declaration indicated that due diligence was exercised in contacting the borrower and the required letter was sent via certified mail, return receipt requested. Plaintiff declared that she was never contacted by telephone, nor was her husband and that there were no missed calls or voicemails. No letter was received by her or on behalf of her deceased husband. After receiving the NOD, Plaintiff contacted Rocket Mortgage to request information concerning procedures to assume the loan following the death of her husband but representatives refused to speak with Plaintiff or provide guidance. The NTS was recorded on or about March 17, 2026 and Plaintiff filed this matter on April 15, 2026. The matter was removed to Federal Court and remanded on August 11, 2026. Plaintiff alleges

that she will suffer irreparable harm if the Trustee Sale occurs because the property is her primary residence.

In connection with the Oppositor, Defendant Rocket Mortgage provided no evidence, instead referring to Plaintiff's evidence as conclusory. An unofficial copy of the NOD is attached to the Verified Complaint filed by Plaintiff. Attached to the NOD is the California Declaration of Compliance in which Yvonne Hohfeldt, Loss Mitigation Officer for Rocket Mortgage checked the box indicating that "The mortgage servicer has exercised due diligence to contact the borrower as required by California Civil Code § 2923.55(f), and after satisfying the telephone call requirements and waiting the required two (2) weeks, the mortgage servicer sent to the borrower via certified mail, return receipt requested, the letter as required by California Civil Code § 2923.55(f)(3)." Ms. Hohfeldt did not check the boxes indicating that the telephone numbers on file had been disconnected or that the borrower notified in writing to cease further communication. There was no Request for Judicial Notice of this Declaration, and even if there had been a request, the Court would not take judicial notice of the truthfulness of statements made therein. The statement of Ms. Hohfeldt is not made under penalty of perjury under the laws of the State of California and is therefore not competent evidence.

Before the Court is a person living in the home to which the certified letter would have been sent. She declares under penalty of perjury that no such letter was ever received. Instead of providing a copy of the letter or any of the certified mail paperwork, Rocket Mortgage refers to the Declaration of Compliance. In a preliminary injunction, the Court is not tasked with deciding the ultimate outcome, but determining whether Plaintiff has shown a likelihood of success on the merits. Based solely on the evidence presented, the Court finds that Plaintiff has shown a likelihood of success on the merits of the Second Cause of Action, noting that the Second Cause of Action may need to be amended dependent on whether Civ. Code § 2924.18(b) applies to Rocket Mortgage.

As to the second prong of interim harm, Plaintiff has presented evidence that she lives in the home that Defendants are attempting to foreclose on. Defendant did not present any evidence in the Oppositor and instead argues Defendant would be prejudiced by ongoing costs, lost interest, and continued depreciation risk. On balance, the Court finds that the interim harm to Plaintiff is far greater than the interim harm to Defendant. A preliminary injunction shall issue.

Because the Court is issuing a preliminary injunction based on the Second Cause of Action, the Court need not address the Third Cause of Action.

The Court finds that Plaintiff has met her burden. The request for a preliminary injunction is **GRANTED** preventing Defendants from foreclosing on the subject property until final adjudication on the merits in this matter. Plaintiff did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiff is to prepare the Order.

REDDING CITY BALLET VS. CHRISTENSEN, ET AL.
CASE NUMBER: 23CV-0203221

Tentative Ruling on Order for Appearance at Judgment Debtor Examination (Diana Christensen): This matter is on calendar regarding Plaintiff Redding City Ballet's Application and Order for Appearance and Examination of Diana Christensen. On August 11, 2026, the Court issued an Order to Appear to judgment debtor Diana Christensen. CCP § 708.110(d) requires that personal service of the Order for Appearance and Examination be made on the debtor "not less than 30 days before the date set for the examination." A Proof of Service was filed on August 25, 2026 reflecting personal service on Diana Christensen on August 20, 2026, which is more than 30 days prior to today's hearing. The examination shall proceed.